

HOUSE No. 4317

The Commonwealth of Massachusetts

PRESENTED BY:

Patrick Joseph Kearney

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to JBCC FD retirement buy-back.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Patrick Joseph Kearney</i>	<i>4th Plymouth</i>	<i>1/14/2025</i>
<i>Steven George Xiarhos</i>	<i>5th Barnstable</i>	<i>4/22/2025</i>
<i>David T. Vieira</i>	<i>3rd Barnstable</i>	<i>7/29/2025</i>

HOUSE No. 4317

By Representative Kearney of Scituate, a petition (accompanied by bill, House, No. 4317) of Patrick Joseph Kearney and Steven George Xiarhos that the State Retirement Board be authorized to grant creditable service for certain employment with the federal fire department at the Otis Air National Guard Base. Public Service.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to JBCC FD retirement buy-back.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Notwithstanding chapter 32 of the General Laws or any other general or
2 special law to the contrary, the state board of retirement shall credit Dennis Ragazzini, a member
3 of the state employees' retirement system, with 10 years of creditable service for his employment
4 with the federal fire department at the Otis Air National Guard Base between December 28, 1993
5 and September 28, 2008; provided, that eligibility for creditable service pursuant to this section
6 shall be conditioned upon payment by Dennis Ragazzini to the state employees' retirement
7 system of an amount equal to that which would have been withheld as regular deductions from
8 his regular compensation for such previous service plus buyback interest, in 1 lump sum or
9 installments, as the state board of retirement shall prescribe.

10 SECTION 2. Notwithstanding chapter 32 of the General Laws or any other general or
11 special law to the contrary, the state board of retirement shall credit Scott Chicoine, a member of
12 the state employees' retirement system, with 8.24 years of creditable service for his employment

13 with the federal fire department at the Otis Air National Guard Base between July 2, 2000 and
14 September 28, 2008; provided, that eligibility for creditable service pursuant to this section shall
15 be conditioned upon payment by Scott Chicoine to the state employees' retirement system of an
16 amount equal to that which would have been withheld as regular deductions from his regular
17 compensation for such previous service plus buyback interest, in 1 lump sum or installments, as
18 the state board of retirement shall prescribe.

19 SECTION 3. Notwithstanding chapter 32 of the General Laws or any other general or
20 special law to the contrary, the state board of retirement shall credit Schaun Dion, a member of
21 the state employees' retirement system, with 6.93 years of creditable service for his employment
22 with the federal fire department at the Otis Air National Guard Base between October 22, 2001
23 and September 28, 2008; provided, that eligibility for creditable service pursuant to this section
24 shall be conditioned upon payment by Schaun Dion to the state employees' retirement system of
25 an amount equal to that which would have been withheld as regular deductions from his regular
26 compensation for such previous service plus buyback interest, in 1 lump sum or installments, as
27 the state board of retirement shall prescribe.

28 SECTION 4. Notwithstanding chapter 32 of the General Laws or any other general or
29 special law to the contrary, the state board of retirement shall credit Eric Weston, a member of
30 the state employees' retirement system, with 6.44 years of creditable service for his employment
31 with the federal fire department at the Otis Air National Guard Base between April 21, 2002 and
32 September 28, 2008; provided, that eligibility for creditable service pursuant to this section shall
33 be conditioned upon payment by Eric Weston to the state employees' retirement system of an
34 amount equal to that which would have been withheld as regular deductions from his regular

35 compensation for such previous service plus buyback interest, in 1 lump sum or installments, as
36 the state board of retirement shall prescribe.

37 SECTION 5. Notwithstanding chapter 32 of the General Laws or any other general or
38 special law to the contrary, the state board of retirement shall credit Jason Orlowski, a member of
39 the state employees' retirement system, with 5.67 years of creditable service for his employment
40 with the federal fire department at the Otis Air National Guard Base between January 27, 2003
41 and September 28, 2008; provided, that eligibility for creditable service pursuant to this section
42 shall be conditioned upon payment by Jason Orlowski to the state employees' retirement system
43 of an amount equal to that which would have been withheld as regular deductions from his
44 regular compensation for such previous service plus buyback interest, in 1 lump sum or
45 installments, as the state board of retirement shall prescribe.

46 SECTION 6. Notwithstanding chapter 32 of the General Laws or any other general or
47 special law to the contrary, the state board of retirement shall credit Thomas Stark, a member of
48 the state employees' retirement system, with 3.99 years of creditable service for his employment
49 with the federal fire department at the Otis Air National Guard Base between October 3, 2004
50 and September 28, 2008; provided, that eligibility for creditable service pursuant to this section
51 shall be conditioned upon payment by Thomas Stark to the state employees' retirement system of
52 an amount equal to that which would have been withheld as regular deductions from his regular
53 compensation for such previous service plus buyback interest, in 1 lump sum or installments, as
54 the state board of retirement shall prescribe.

55 SECTION 7. Notwithstanding chapter 32 of the General Laws or any other general or
56 special law to the contrary, the state board of retirement shall credit Joshua Child, a member of

the state employees' retirement system, with 3.72 years of creditable service for his employment with the federal fire department at the Otis Air National Guard Base between January 9, 2005 and September 28, 2008; provided, that eligibility for creditable service pursuant to this section shall be conditioned upon payment by Joshua Child to the state employees' retirement system of an amount equal to that which would have been withheld as regular deductions from his regular compensation for such previous service plus buyback interest, in 1 lump sum or installments, as the state board of retirement shall prescribe.

SECTION 8. Notwithstanding chapter 32 of the General Laws or any other general or special law to the contrary, the state board of retirement shall credit Darren Begley, a member of the MASSACHUSETTS STATE RETIREMENT (MSRB) retirement system, with 2.33 years of creditable service for his employment with the federal fire department at the Otis Air National Guard Base between May 30, 2006 and September 28, 2008; provided, that eligibility for creditable service pursuant to this section shall be conditioned upon payment by Darren Begley to the MASSACHUSETTS STATE RETIREMENT (MSRB) county retirement system of an amount equal to that which would have been withheld as regular deductions from his regular compensation for such previous service plus buyback interest, in 1 lump sum or installments, as the state board of retirement shall prescribe.

SECTION 9. Notwithstanding chapter 32 of the General Laws or any other general or special law to the contrary, the state board of retirement shall credit Bernard Devin, a member of the state employees' retirement system, with 1.72 years of creditable service for his employment with the federal fire department at the Otis Air National Guard Base between January 9, 2007 and September 28, 2008; provided, that eligibility for creditable service pursuant to this section shall be conditioned upon payment by Bernard Devin to the state employees' retirement system

of an amount equal to that which would have been withheld as regular deductions from his regular compensation for such previous service plus buyback interest, in 1 lump sum or installments, as the state board of retirement shall prescribe.

SECTION 10. Notwithstanding chapter 32 of the General Laws or any other general or special law to the contrary, the state board of retirement shall credit Kyle Davis, a member of the state employees' retirement system, with 1.17 years of creditable service for his employment with the federal fire department at the Otis Air National Guard Base between July 28, 2007 and September 28, 2008; provided, that eligibility for creditable service pursuant to this section shall be conditioned upon payment by Kyle Davis to the state employees' retirement system of an amount equal to that which would have been withheld as regular deductions from his regular compensation for such previous service plus buyback interest, in 1 lump sum or installments, as the state board of retirement shall prescribe.

SECTION 11. Notwithstanding chapter 32 of the General Laws or any other general or special law to the contrary, the state board of retirement shall credit Kyle McHale, a member of the state employees' retirement system, with 1.11 years of creditable service for his employment with the federal fire department at the Otis Air National Guard Base between August 20, 2007 and September 28, 2008; provided, that eligibility for creditable service pursuant to this section shall be conditioned upon payment by Kyle McHale to the state employees' retirement system of an amount equal to that which would have been withheld as regular deductions from his regular compensation for such previous service plus buyback interest, in 1 lump sum or installments, as the state board of retirement shall prescribe.

101 SECTION 12. Notwithstanding chapter 32 of the General Laws or any other general or
102 special law to the contrary, the state board of retirement shall credit Michael Ayotte, a member
103 of the state employees' retirement system, with 10 years of creditable service for his employment
104 with the federal fire department at the Otis Air National Guard Base between October 1, 1986
105 and September 28, 2008; provided, that eligibility for creditable service pursuant to this section
106 shall be conditioned upon payment by Michael Ayotte to the state employees' retirement system
107 of an amount equal to that which would have been withheld as regular deductions from his
108 regular compensation for such previous service plus buyback interest, in 1 lump sum or
109 installments, as the state board of retirement shall prescribe.